

BEFORE THE FEDERAL MARITIME COMMISSION

INTERMODAL MOTOR CARRIERS CONFERENCE,
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT
ASSOCIATION, INC., CONSOLIDATED CHASSIS
MANAGEMENT, LLC, CMA CGM S.A., COSCO
SHIPPING LINES CO. LTD., EVERGREEN LINE
JOINT SERVICE AGREEMENT, FMC NO. 011982,
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK
A/S, MSC MEDITERRANEAN SHIPPING
COMPANY S.A., OCEAN NETWORK EXPRESS
PTE. LTD., WAN HAI LINES LTD., YANG MING
MARINE TRANSPORT CORP., AND ZIM
INTEGRATED SHIPPING SERVICES,

Respondents.

FMC Docket No. 20-14

JOINT STATUS REPORT AND PROPOSED DISCOVERY SCHEDULE

Pursuant to the Federal Maritime Commission Rules of Practice and Procedure, §502.141(h), the Complainant and Respondents (collectively the “Parties”) have conferred and submit this joint status report and proposed discovery schedule.

Pursuant to the Presiding Officer’s guidance in the Order Denying Respondents’ Motion for Leave to File Interlocutory Appeal, dated January 29, 2021, the Parties have conferred and propose limiting certain categories of initial Party document discovery to the following geographic areas: the Ports of Long Beach and Los Angeles, the Port of Savannah, intermodal terminals in the Chicago area, and intermodal terminals in the Memphis area. Complainant served its First Request for Production of Documents to Respondents on October 14, 2020, with a return date of 30 days after the filing of Respondents answers (March 22, 2021). Respondents

will serve their Requests for Production of Documents to Complainant on March 8, 2021. The Parties will meet and confer regarding each Party's discovery requests, including the relevant time periods for Party document discovery. If the Parties cannot reach agreement on the reasonableness of the discovery requests, any disputes will be submitted to the Presiding Officer by March 15, 2021 for resolution. The Parties will produce responsive documents on a rolling basis, with all document production completed by June 1. The Parties may file motions for summary decision on October 29, 2021. After the completion of discovery, a Party or Parties may seek permission from the Presiding Officer to conduct additional discovery.

Therefore, the Parties submit the following proposed schedule of proceedings:

Event	Deadline
Deadline for Respondents' Initial Discovery Requests	March 8, 2021
Submission of Discovery Disputes Re: Scope	March 15, 2021
Complete Priority Document Production	April 2, 2021
Deadline for Service of Requests for Production and Fact Interrogatories	May 1, 2021
Complete Document Production	June 1, 2021
Complete Fact Depositions	July 16, 2021
Disclosure of Initial Expert Reports	August 16, 2021
Disclosure of Rebuttal Expert Reports	September 7, 2021
Expert Discovery Cut-off	September 30, 2021
Completion of Discovery	October 15, 2021
Motions for Summary Decision	October 29, 2021

The Parties have also prepared a Joint Proposed Stipulation and Order of Confidentiality, and respectfully submit it herewith for approval.

Given the number of Respondents in this matter, the Parties anticipate that more than 20 depositions may be needed. The Parties expect to resolve this issue informally with stipulations without the involvement of the Presiding Officer. *See* Rule 502.143(a)(2)(i). The Parties have jointly proposed a schedule that modestly exceeds 150 days because of the number of Respondents and the need for subpoenas to conduct third-party discovery. Nevertheless, the

Respondents are concerned that delays could occur which could impact the Schedule. The Parties intend to diligently pursue discovery in accordance with the schedule, but if delay appears likely, the Parties will advise the Presiding Officer promptly.

Finally, as per Federal Maritime Commission Rules of Practice and Procedure §502.64(a)(2), the Parties have contacted the Commission's Office of Consumer Affairs and Dispute Resolution Services. After conferring, the Parties do not expect mediation to resolve this matter.

Respectfully submitted,

Dated: March 1, 2021

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CERTIFICATE OF SERVICE

I certify that, on March 1, 2021, a true and current copy of the foregoing Joint Status Report was filed via electronic mail with the Secretary of the Federal Maritime Commission, and a copy was served via electronic mail on the following counsel:

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